Chronology of Events: Fishbone Construction Ltd, BBC Cardiff Central Square (FC2520)

Claim 019JE538. MSEM UK Ltd v Fishbone Construction Ltd. DRAFT v0.2 of a new chronology, 2 Nov 2026. Prepared by Victoria for Minda from Fishbone's own documents and Minda's account. It is a working draft. It does not replace the Chronology already filed (FC0000004) unless the court office or an adviser agrees how to do that. Each entry gives its source: **MG** = Minda's statement exhibits (MG11 to MG14 are new); **MD** = an exhibit in MSEM's evidence; **Minda** = Minda's own account, not yet backed by a document; **E** = an email in Fishbone's mailboxes, listed in the Central Square email file.

2025

24 November. Macdonald Joinery & Construction Ltd ("Macdonald Joinery"), the main contractor, emails that works at BBC Central Square start on Monday 1 December and that its "Site Managers" for the pre-start meeting are Mindaugas Gaudiesius and Mikheil Davidans (MG11).

Before 26 November. Macdonald Joinery asks Minda by telephone that Fishbone take over the site management of the project. (Minda)

26 November. Pre-start meeting at 11:00 at BBC Central Square, led by Liam Price of EMCOR, the client's project manager. Minda and Mikheil Davidans attend. (MG11; Minda; MD2)

28 November. Geoff Smith of Macdonald Joinery writes to Minda and Mr Davidans that Fishbone will supply ancillary items (packers, adhesives, silicones) for the Cardiff toilet and tea-point projects and invoice accordingly. (E; MD8)

Terms with Mr Davidans. Minda offers Mr Davidans the site manager role. The agreement is verbal, at £300 a day, with no written agreement and no fixed end date. Fuel and accommodation are paid. Minda agrees to pay a full day for Fridays on one condition, that all the works are completed on schedule. (Minda)

1 December. Works start. Mr Davidans carries out the first site induction at 09:00 (E, Mr Davidans's own email 08:44). The client's project manager writes at 07:53 that "the 2 projects" start that day (MG11). Minda emails BBC security at 09:39 and 09:44 about a delivery of site set-up to Central Square by Fishbone's van, with himself as driver (E). Minda creates a Telegram group for the project; from 2 December to 6 February Mr Davidans posts daily progress photographs and photographs of the site sign-in register (MG1).

December. Fishbone supplies and pays the labour: two carpenters supplied through Torin Construction Ltd, and Raitis Bikovs, who works mainly on the Roath Lock kitchens and at Central Square on 11 and 16 February (MG4; E, Mr Bikovs's invoice emails). Mr Davidans directs the Central Square operatives as site manager. Minda is the site manager at the separate Roath Lock project. (Minda)

2026

7 January. Liam Price writes to Macdonald Joinery, copying Minda, that Mr Davidans has been told he is managing both BBC sites and that he needs a site manager at both projects at all times (MG13).

First working week of January. Macdonald Joinery tells Minda by telephone that it is unhappy with costs and that one site manager is enough to cover five operatives across both sites. Minda leaves Mr Davidans as site manager on both sites. (Minda)

12 January. Andrew Macdonald confirms an English-speaking working foreman, Oleksii Starovoitov, is on site at Roath Lock (MG13).

21 January. Liam Price complains about the lack of daily progress briefings at Roath Lock and says the work is good. Minda replies the same day that "Mikheil and Alex every morning will have little meetings with FM" (E).

On or about 30 January. A meeting takes place at the BBC. Minda does not attend. Mr Davidans telephones Minda that day, says he needs to finish the works and will be ready for handover, and does not mention defects, snagging items or any need for labour or help. (Minda; MSEM's own phone bill, MD14, shows a call from Mr Davidans's phone to Minda's number at 09:20)

2 February. Minda and Andrejus Prutkovas visit the Central Square site. They travel in Fishbone's van NJ17CYK, Minda driving, from Newcastle to Cardiff on 2 February and return on 3 February (Minda; Radius vehicle-tracking report for 2 to 8 February shows the van driving about 08:00 to 15:00 on the 2nd and about 6 hours on the 3rd, arriving back about 22:30 to 23:00). [**To complete once Minda says what he and Andrejus saw and discussed on site on 2 February. The filed Chronology's 9 February visit is, on Minda's account, this visit.**]

3 February. Dainius Drulia starts as site manager on a separate Fishbone project at BBC Roath Lock (FC2602). (Minda)

4 to 6 February. On 4 February Dave Newell of J4 Projects, the project manager, asks Macdonald Joinery and the client whether Thursday of the following week suits for a "final site meeting for the WCs". On 6 February David Macdonald forwards this to Minda ("Please see date for snag and handover of the toilets") and Minda replies "Yes, Thursday perfect". Thursday is 12 February (MG12).

5 February. At 09:01 Minda telephones Mr Davidans (MG6). He asks whether Mr Davidans needs spare labour and whether he is working the coming weekend. Mr Davidans says he is in control, is not working the weekend, and that Minda should not worry. He does not ask for help and does not say there is a problem. (Minda) At 11:20 Geoff Smith asks Minda to measure a vanity unit top; at 11:26 Minda sends a photograph (E).

7 February. The programme shows testing and commissioning starting (MG2).

8 February. MSEM issues invoice 553 for £1,898 (MG3).

10 February. At 10:27 Mr Davidans sends Minda a WhatsApp video. Minda's account is that it showed a damaged panel with a colour label, and that he asked for a replacement. Mr Davidans's account is that it showed gaps around cubicle doors (MD13-V1). At 13:03 Minda telephones Mr Davidans about the panel, and at 13:35 Mr Davidans sends a photograph of the panel label (MG5, MG6). *The video must be checked before this entry is used.*

11 February. Fishbone books a ferry for Sebastian Pabis and Anton Kogut, then in Guernsey on another Fishbone job, to travel with a Fishbone van to the mainland the next day (E, Brittany Ferries; 12 February, 08:15 from Guernsey, arrival 15:45).

12 February. The final site meeting for the toilets takes place at Central Square. Minda is not there. At 15:11 Dave Newell emails Macdonald Joinery and the client a list of 16 snagging items "following the snagging meeting today" and writes "We will need to delay handover until items 1-16 are complete." At 15:32 David Macdonald forwards it to Minda with the words "This is just the start of it." (MG7)

13 February. At 11:41 and 11:47 Dave Newell sends Minda a Teams invitation, "Cardiff", for 14:00 to 14:30 to run through the snagging (MG14). Minda joins on his way to Cardiff, arrives that night and is not on site that day. (Minda) Mr Davidans's own emails of that day show him working with "Sebastian and Daniela" on the snagging; at 16:05 he writes that he is "on the way home" (MD16). Invoice 552 is paid (MG3).

14 February. Minda and Andrejus Prutkovas go to the site and plan the rectification with Mr Drulia and Mr Pabis. Mr Drulia and Mr Pabis tell Minda that Mr Davidans has left and, in their words, finished his "ten-week project". They tell him he was on site on 13 February. (Minda)

13 February to 1 March. Fishbone puts right the work at Central Square: Snag Doctor £530.00; Anton Kogut £1,400.00; Dainius Drulia £2,300.00 (Central Square days from 13 February); Sebastian Pabis £3,730.69 (employment cost); Raitis Bikovs £112.50 (16 February overtime); Oleksii Starovoitov £308.75 (16 February). Total evidenced £8,381.94; claimed £7,997.25 (MG10).

15 February. MSEM issues invoice 554 for £1,891 (MG3).

18 February. Minda asks Mr Davidans by WhatsApp where the toilet signage is (MG5).

19 and 23 February. Macdonald Joinery and J4 correspond about the signage, which is "not sent to site as yet". On 23 February David Macdonald asks that the main toilets be completed by Wednesday; Minda replies that the operatives are moving panels and one cubicle was finished before lunch (MG8).

22 and 27 February. Mr Davidans asks for payment (WhatsApp, MD17; MG5). On 23 February Minda replies that Fishbone's payment is held until handover. On 27 February Minda replies that the handover is on Monday and they will then speak about how to close the matter. (MG5)

March to date

3 March. MSEM's company secretary, Egita Davidane, emails Fishbone for the invoice position, the first written chase (E, MD20/ED2).

6 March. Letter before action (MD20/ED3).

16 March. MSEM's "Final Notice Before Court Claim" for invoices 553 and 554 (E; MD20/ED4).

18 March. Fishbone disputes the invoices in writing, citing incomplete works, delay, defects, site management and the cost of rectification (MG9). Ms Davidane replies at 11:38 asking for supporting documents (MD20).

27 March and 7 April. Further requests and a second letter before action for £3,031.20 net (MD20/ED6, ED7).

Claim. MSEM claims £3,031.20 (invoices 553 and 554 after CIS). Fishbone counterclaims £7,997.25 and, if the claim were allowed in full, the net counterclaim would be £4,966.05.

Telephone calls on the record

- **Minda's phone (MG6, outgoing only):** 3 February (two calls, each under 30 seconds); 5 February 09:01 (about one minute); 10 February 13:03.
- **Mr Davidans's phone (MD14, outgoing only), to Minda's number:** 30 January 09:20; 3 February 10:47; 6 February 15:35 (2m 37s); 10 February 10:36; 12 February 10:50 and 13:00; 18 February

14:24. To Andrejus's number: 10 February at 14:35 and about 15:19. **No call to either number on 13 February.** (OCR of a scanned bill; check the image.)

Left out of this chronology, and why

1. **"Mr Davidans left the site on 12 February and ceased communication"** (filed Chronology): his own emails and messages show he was working on 13 February and messaged about pay on 22 and 27 February.
2. **A 9 February site visit by Minda and Andrejus:** no ticket, hotel, call or email supports it, and Minda does not remember it. MSEM says it took place. Neither statement should assert it until you or Andrejus can swear to it.
3. **"Several telephone discussions" on 2 to 6 February:** Minda's records show calls on 3 and 5 February only.
4. **"Mr Davidans attended the 30 January pre-handover meeting on behalf of Fishbone":** no document shows it; he says it was a Roath Lock meeting.
5. **"Two additional subcontractors dispatched on 12 February":** Pabis was crossing from Guernsey.
6. **What Mr Davidans said on 13 February, and "left around noon":** unproven.

Facts that need confirming before this is used

- Where Minda and Andrejus were on 3, 8, 9 and 13 February, and why Andrejus had a Kings Cross room on 13 February.
- What Minda says was said on 30 January, 3, 6, 12, 13 and 18 February, checked against his own outgoing records.
- What Drulia and Pabis saw first-hand on 13 February.
- What the 10 February video shows.
- Whether any documents went to MSEM after 18 and 27 March.